

ELIZABETH II



1970 CHAPTER xxxviii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to the Lake of Menteith Fisheries. [23rd July 1970]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the Lake of Menteith Fisheries Short title. Order Confirmation Act 1970.

SCHEDULE

LAKE OF MENTEITH FISHERIES

*Provisional Order to confer on the Lake of Menteith Fisheries
Limited powers with respect to fishings in the Lake of Menteith;
and for other purposes.*

Whereas—

1948 c. 38.

(1) The Lake of Menteith Fisheries Limited (hereinafter called “ the Company ”) is a private company incorporated under the Companies Act 1948 with the principal objects of acquiring the fishings in the Lake of Menteith (hereinafter called “ the Lake ”) and of improving and maintaining the said fishings and stocking the Lake with trout and rainbow trout:

(2) The shareholders of the Company comprise, and comprise only, the riparian proprietors and other persons having rights or privileges of fishing in the Lake with the exception of the proprietors of the islands of Inchmahome and Inch Talla, and the allotment and the transfer of shares in the Company are restricted in the manner set out in its Articles of Association:

(3) In order to provide for the effective management, improvement and control of the said fishings it is expedient and would be in the public interest that the Company should have the sole power of administering, managing, regulating and controlling the said fishings and of issuing tickets entitling the holders thereof to fish in the Lake, and that all existing rights and privileges relating to the said fishings should cease to be exercised:

(4) It is expedient that further provisions be enacted as in this Order contained:

1936 c. 52.

(5) The purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore, in pursuance of the powers contained in the said Act of 1936, the Secretary of State orders as follows:—

Short title.

1. This Order may be cited as the Lake of Menteith Fisheries Order 1970.

Interpretation.

2. In this Order—

“ the Company ” means the Lake of Menteith Fisheries Limited;

“ the Lake ” means the Lake of Menteith.

3. On the coming into operation of this Order all rights and privileges Fishing relating to fishing in the Lake which prior to the coming into operation rights. of this Order were vested in or exercised by any person as owner, lessee or occupier of land in or contiguous to the Lake, or in or by any person other than the Company, other than rights to be conferred by the issue of licences and tickets pursuant to section 5 (Fishing licences and tickets) of this Order, shall cease to be exercisable by such persons or by their respective successors in title:

Provided that—

- (i) nothing in this section shall affect or prejudice any rights and privileges of access to the Island of Inchmahome or to the Island of Inch Talla or of fishing in the Lake from the banks of either of those islands which prior to the coming into operation of this Order were vested in or exercised by any such person as aforesaid, but nothing in this proviso shall be construed as permitting fishing in the Lake by any such person as aforesaid from boats launched from either of the said islands or elsewhere;
- (ii) on the liquidation of the Company for any reason all such rights and privileges shall again become exercisable by the persons who, at the time of such liquidation, are the owners, lessees or occupiers of land in or contiguous to the Lake and their successors in title in like manner as they would have been exercisable if this Order had not been made;
- (iii) nothing in this section shall prejudice the allotment, disposal or transfer of shares under the Articles of Association of the Company, and for those purposes articles 7 and 9 of the said articles shall continue to have effect in all respects as if this section had not been enacted.

4.—(1) The Company shall have sole power to administer, manage, Management regulate and control the fishings in the Lake and any activities on or of fishings. adjacent to the Lake relating to or affecting the fishings, and generally to do any act or take any proceedings in relation to the fishings which, but for this Order, any person having a right or privilege relating to fishing in the Lake, or all such persons acting jointly, might lawfully have done or taken and for those purposes may exercise the further powers conferred upon them by this Order.

(2) The Company may take such steps, appoint such wardens, bailiffs and other officers and carry out such operations as they deem necessary for the proper maintenance and improvement of the fishings in the Lake.

5.—(1) The Company shall be bound on request to issue free of Fishing licences charge to any person for the time being a shareholder of the Company, and tickets. or the proprietor of an island in the Lake, a permanent licence to maintain and operate one rowing boat for fishing on the Lake by rod and line.

(2) The Company may issue to members of the public such fishing tickets, in such numbers and at such price as shall be from time to time determined by resolution passed at a general meeting of the Company:

Provided that the numbers of such other fishing tickets issued under this subsection shall be no greater than, in the view of the Company, is consistent with the proper conservation, management and enjoyment of the fishing in respect of which they are issued.

(3) Every fishing ticket issued under this section shall entitle the holder to fish the Lake for the day, week, season or other period specified on the ticket subject to such conditions, if any, as may be entered on the ticket by direction of the Company, and to compliance with the reasonable requirements of any warden, bailiff or officer appointed by the Company pursuant to subsection (2) of section 4 (Management of fishings) of this Order.

(4) The issue of a licence or fishing ticket under this section shall not entitle the holder to have access to the Island of Inchmahome or the Island of Inch Talla for the purpose of fishing the Lake.

Saving for
public Acts
relating to
fisheries.

1951 c. 26.

6. Nothing in this Order shall derogate from the provisions of the Trout (Scotland) Acts 1845 to 1933 or the Salmon and Freshwater Fisheries (Protection) (Scotland) Act 1951.

Saving for
Ancient
Monuments
Acts, etc.

7. Nothing in this Order shall affect or prejudice the rights of the Secretary of State as Guardian of the Island of Inchmahome and the ancient monuments situated thereon under the Ancient Monuments Acts 1913 to 1953 as read with the Transfer of Functions (Scottish Royal Parks and Ancient Monuments) Order 1969 or any order, rule, regulation, deed or other instrument made under the said Acts; and without prejudice to the foregoing generality nothing in this Order shall affect the right of the Secretary of State to regulate access to the said island and monuments which shall continue to remain available on payment of a prescribed fee.

Costs of
Order.

8. The costs, charges and expenses of and incidental to the preparation, obtaining and confirmation of this Order (or otherwise in relation thereto) shall be paid by the Company.

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Lake of Menteith Fisheries Order Confirmation Act 1970

CHAPTER xxxviii

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

LAKE OF MENTEITH FISHERIES

1. Short title.
2. Interpretation.
3. Fishing rights.
4. Management of fishings.
5. Fishing licences and tickets.
6. Saving for public Acts relating to fisheries.
7. Saving for Ancient Monuments Acts, etc.
8. Costs of Order.